SUPERIOR COURT OF THE DISTRICT OF COLUMBIA
CRIMINAL DIVISION

Case number of the case this motion addresses (copy it exactly from the court record):

_____

IN THE MATTER OF THE MOTION OF
REVIEW-SUPPLIED-PARTICIPANT_FULL_LEGAL_NAME, MOVANT

MOTION FOR EXPUNGEMENT OF RECORDS ON GROUNDS OF ACTUAL INNOCENCE UNDER D.C. CODE Sec. 16-803

1. The movant, REVIEW-SUPPLIED-participant_full_legal_name, date of birth REVIEW-SUPPLIED-date_of_birth, moves this Court under D.C. Code Sec. 16-803 to expunge the record of the case identified in the caption above, on grounds of actual innocence.

2. Grounds for eligibility: the case was terminated by the prosecutor or reached a final disposition, did not result in a conviction, and did not result in an acquittal by reason of insanity under D.C. Code Sec. 24-501. The movant asserts, and will demonstrate by a preponderance of the evidence, that the offence did not occur or was not committed by the movant. The movant states the case facts from the court record:

(a) What the movant was charged with, worded exactly as the court record words it:

_____

(b) Disposition of the case - how it ended, and the date of final disposition:

_____

3. The movant's own statement of why the offence did not occur, or why the movant was not the person who committed it, in the movant's own words (state only facts you know first-hand; this packet writes none of these lines for you):

(a) The movant's own words:

_____

(b) The movant's own words (continued):

_____

(c) The movant's own words (continued):

_____

4. Statement of points and authorities, exhibits, affidavits and supporting documents attached to the motion (list what you attach; the movant carries the burden and supplies the supporting material):

(a) Attached:

_____

(b) Attached (continued):

_____

5. Prior expungement motions like this one the movant has filed, and when each was resolved (write NONE if none):

(a) Prior motions, and when each was resolved:

_____

6. The movant therefore asks the Court to expunge the records relating to the case identified above, pursuant to D.C. Code Sec. 16-803.

Signature

REVIEW-SUPPLIED-participant_full_legal_name, Movant

_____

REVIEW-SUPPLIED-PARTICIPANT_FULL_LEGAL_NAME
REVIEW-SUPPLIED-mailing_address
Telephone: REVIEW-SUPPLIED-phone_number
Email: REVIEW-SUPPLIED-email_address

The movant signs and dates this motion personally. Nothing on this page is signed or dated for the movant.

(a) PRINTED NAME: REVIEW-SUPPLIED-participant_full_legal_name

(b) MAILING ADDRESS: REVIEW-SUPPLIED-mailing_address

(c) TELEPHONE: REVIEW-SUPPLIED-phone_number

(d) EMAIL: REVIEW-SUPPLIED-email_address

Enclosed is a copy of the motion filed by REVIEW-SUPPLIED-participant_full_legal_name under D.C. Code Sec. 16-803: MOTION FOR EXPUNGEMENT OF RECORDS ON GROUNDS OF ACTUAL INNOCENCE UNDER D.C. CODE Sec. 16-803.

Under the recorded rule for this motion, the motion is served on the prosecutor, and the prosecutor need not respond unless the Court orders it. Do not expect an opposition by default.

WHICH OFFICE, AND WHERE, IS NOT STATED HERE. Two offices prosecute District of Columbia cases - the United States Attorney's Office for the District of Columbia and the Office of the Attorney General for the District of Columbia - and no source this packet is built from states the rule for which office prosecuted a given case or its correct service address. A guessed recipient in a service instruction is worse than none. Before you serve this copy, ask the Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC (202-879-1373), or the Seal Team at criminalmotionsealteam@dcsc.gov which office prosecuted your case and the correct service address, and use exactly what they tell you.

(a) NAME AND MAILING ADDRESS OF THE PROSECUTING OFFICE FOR THE CASE (you write it here before service; the Criminal Division clerk's office can confirm it):

_____

(b) Prosecuting office (continued):

_____

(c) DATE OF SERVICE OF THE COPY:

_____

Signature

REVIEW-SUPPLIED-participant_full_legal_name, Movant

_____

REVIEW-SUPPLIED-PARTICIPANT_FULL_LEGAL_NAME
REVIEW-SUPPLIED-mailing_address
Telephone: REVIEW-SUPPLIED-phone_number
Email: REVIEW-SUPPLIED-email_address

This page is not proof of service and does not say that anything has been served. It is completed and signed by the movant when the copy actually goes out, in the manner the clerk directs. A date or a signature written before the copy goes out would be false.